

Internal review reference: 1-279218761  
Original request reference: 1-277200227

14 April 2015

request-249042-e2472170@whatdotheyknow.com

Graham Howell  
Secretariat

[information.requests@ofcom.org.uk](mailto:information.requests@ofcom.org.uk)

## **Freedom of Information: Internal Review**

Dear Mr James

Thank you for your request for an internal review of your Freedom of Information request.

On 7 January you asked:

*I would be very grateful if you could provide me a list of all unallocated UK amateur radio call signs (i.e. those call signs that would be available to anybody who has just passed a Foundation, Intermediate or Full exam).*

On 19 January Julia Snape replied to you stating that:

*In terms of your latest request, I note that you made exactly the same request on 11 August 2014 to which we responded on 18 August. Given that it is less than 5 months since this request and that we provided a full answer to exactly the same request in November, we have decided that Section 14 of the Act applies and we will not be providing the information requested. We consider it has been made too soon after your last request for exactly the same information and will involve a disproportionate amount of time and effort to search for.*

On 6 February you asked for an internal review.

On 25 February Tim Smith emailed you and provided all the information you had originally requested.

On 10 March following the release of all the information requested Jonathan Pillinger-Cork closed your internal review.

On 25 March you asked for the internal review to be reopened.

I have reviewed your request for information and Ofcom's responses. I am pleased that Ofcom has now provided all the information you requested.

Ofcom's initial rejection of your request was based on S.14 (2) of the Act, which states that 'a public authority is not obliged to comply with a subsequent identical or substantially

similar request from that person unless a reasonable interval has elapsed'. Your previous request for the same information was received on 11 August and responded to on 18 August, approximately 5 months prior to your current request.

You argue however that, the request was not a repeat as the information had changed substantially, that your request was effectively for new information.

You have suggested in your request for an internal review that the information you have requested is dynamic, frequently updated and because of this a reasonable interval between requests would be a month.

You also suggest in your request for an internal review that, given your knowledge of Ofcom's systems, it would not require a disproportionate amount of time to compile the list and therefore Ofcom should comply with your request.

I will deal with these issues in turn.

Your 7 January request was substantially similar to your request in August – whilst I accept that the information is dynamic, your request was for the same information and was therefore identical to your earlier request. This was set out by Ms Snape in her response to you.

I accept that, due to the nature of the information and the frequent changes to it, 6 months was too long an interval to insist on between particular requests. Whilst I cannot place a minimum time period on repeat requests, we will take account of the detail you have provided on the nature of the information when considering future requests.

Given the dynamic nature of the information, I have concluded that there would not have needed to be a disproportionate amount of effort undertaken to comply with your request in this instance.

In addition you raise the issue of your additional request which asked for details of the time it would take to comply with your request. As you have also asked for a separate internal review of this issue, I will deal with this by separate letter.

As you now have all the information you requested and an explanation of where Ofcom was incorrect in its initial judgement, I trust you are content with the outcome of your request.

Yours sincerely,



Graham Howell.

Information Commissioner's Office  
Wycliffe House  
Water Lane  
Wilmslow  
Cheshire  
SK9 5AF